

IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO. 452 OF 2024

ARUN KUMAR VERSUS STATE OF UTTAR PRADESH

CITATION: 2024 INSC 580

DATE OF JUDGMENT: 14th August, 2024

JUDGMENT

1. This appeal challenges the conviction and sentence passed by the High Court under Section 302 of the Indian Penal Code (IPC).
2. BRIEF FACTS: The prosecution alleged that on 15th January, 2022, an altercation took place between the appellant and the deceased, resulting in the death of the deceased.
3. The primary issue before this Court is whether the offence falls under Section 302 IPC (Murder) or Exception 4.

4. LEGAL PRINCIPLES: It is well established that to bring an offence under Exception 4 to Section 300, four ingredients are required, namely:

- (i) that there was a sudden fight;
- (ii) that there was no premeditation;
- (iii) that the act was committed in a heat of passion; and
- (iv) that the assailant did not take undue advantage or act in a cruel or unusual manner.

5. When these conditions are satisfied, the conviction under Section 302 IPC must be altered to Section 304 Part II.

ORDER

6. In view of the evidence on record, the appeal is partly allowed. The conviction under Section 302 IPC is modified to Section 304 Part II.